

		Second, Defendants has filed new separate statements which cure the defects in the prior statements. (See Cal. Rules of Court, rule 3.1345(c).) However, they present new arguments which are being raised for the first time in reply. Additionally, the replies themselves also raise new arguments such as the responses not being verified. (See <i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537-1538 [the general rule of precluding new evidence in reply ensures the opposing party has an opportunity to counter any arguments].) The parties are ORDERED to meet and confer in good faith in an attempt to resolve the outstanding discovery issues in person, by telephone, or by videoconference within 15 days of this order. If Plaintiff agrees to serve supplemental responses, Plaintiff shall serve supplemental verified responses and produce additional documents no later than 20 court days prior to the continued hearing date. Each party may file a statement not to exceed 5 pages addressing the parties meet and confer efforts no later than 15 court days before the hearing. For each Motion, Defendant's counsel may file and serve a supplemental memorandum of remaining issues, no later than 9 court days before the continued hearing date and not to exceed ten pages, including: (1) attaching a copy of Defendant's supplemental responses, if any; and (2) a concise description of any remaining dispute including identification of the specific requests which remain in dispute. For each motion Plaintiff's counsel may file a responsive supplemental memorandum, not to exceed ten pages, no later than 5 calendar days before the continued hearing date.
4.	EDWARDS VS. TALEBI 2025-01522002	MOTION TO SERVE BY ELECTRONIC MAIL OR ALTERNATIVETO SERVE BY PUBLICATION Plaintiff Justin Edwards' Motion for Alternate Service of Summons on Defendant Amir-Hossein Talebi is GRANTED in part and DENIED in part. Plaintiff moves to serve Defendant by electronic mail pursuant to California Code of Civil Procedure section 413.30. In the alternative, Plaintiff seeks to serve Defendant by publication pursuant to section 415.50. <u>Service by Electronic Mail:</u> Section 413.30 provides in pertinent part, "(a)(1) If no provision is made in this chapter or other law for the service of summons, or if a plaintiff, despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter, the court in which the action is pending may, upon motion, direct that summons be served in a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology, and that proof of such service be made as prescribed by the court. [¶] (2) A plaintiff seeking to establish reasonable diligence under this section shall set forth facts

detailing all attempts to serve the defendant by each of the methods prescribed by statute, including facts demonstrating why each method was unsuccessful at every address or location where the defendant is likely to be found.”

When serving an individual within this state, the Code provides five different methods of service: (1) personal service (§ 415.10); (2) substitute service (§ 415.20); (3) acknowledgement of receipt of summons by regular mail with return acknowledgment of receipt (§ 415.30); and (4) service by publication (§ 415.50). Generally, “in order to obtain in personam jurisdiction through any form of constructive service there must be strict compliance with the requisite statutory procedures.” (*Zirbes v. Stratton* (1986) 187 Cal.App.3d 1407, 1417.)

Though Plaintiff has shown he has exercised reasonable diligence to serve Defendant, it is unclear that service via electronic mail will be “reasonably calculated to give actual notice to the party to be served.” (Code Civ. Proc. § 413.30; Willoughby Decl., ¶¶ 4, 8-10.) Plaintiff’s counsel states that a background search on Defendant was conducted through Delvepoint Skip-Trace which identified email addresses of TAMIRHOSSEIN@YAHOO.COM, which was used by Defendant when he occupied addresses in the city of Glendale, and TALEBIAMIR804@GMAIL.COM, which was used by Defendant when he occupied an address in the city of Irvine. (Willoughby Decl., ¶ 15.) However, Plaintiff has not submitted any evidence to show that the aforementioned email addresses were verified as active.

Therefore, Plaintiff’s request to serve the Summons and Complaint by electronic mail on Defendant is DENIED without prejudice.

Service by Publication:

Section 415.50 provides in pertinent part, “(a) A summons may be served by publication if upon affidavit it appears to the satisfaction of the court in which the action is pending that the party to be served cannot with reasonable diligence be served in another manner specified in this article and that either: [¶] (1) A cause of action exists against the party upon whom service is to be made or he or she is a necessary or proper party to the action.

[¶] (2) The party to be served has or claims an interest in real or personal property in this state that is subject to the jurisdiction of the court or the relief demanded in the action consists wholly or in part in excluding the party from any interest in the property.”

Plaintiff has shown he has exercised reasonable diligence to serve Defendant and that Defendant is a necessary party. Therefore, the court finds that resort to service by publication is necessary.

Plaintiff’s request to serve the Summons and Complaint by publication in the Dana Point Times is GRANTED. Such publication shall run weekly for four consecutive weeks.

		Moving party to give notice.
6.	LEVINE VS. FAIRCHILD 2025-01534040	MOTION TO DISQUALIFY ATTORNEY OF RECORD Plaintiff Andrew S. Levine’s motion to disqualify Alex Wesevich, Esq. as counsel for defendant Aaron Fairchild is DENIED. Plaintiff’s Evidentiary Objections to Defendant’s Evidence is SUSTAINED as to Objection Nos. 8 and 12 and OVERRULED as to the remaining. Plaintiff moves to disqualify Wesevich on the grounds his representation of Defendant violates Rules of Professional Conduct, Rules 3.7 and 1.7. <u>Disqualification under Rule 3.7:</u> Rules of Professional Conduct, Rule 3.7 provides: “(a) A lawyer shall not act as an advocate in a trial in which the lawyer is likely to be a witness unless: [¶] (1) the lawyer’s testimony relates to an uncontested issue or matter; [¶] (2) the lawyer’s testimony relates to the nature and value of legal services rendered in the case; or [¶] (3) the lawyer has obtained informed written consent from the client. . .” “A comment to the rule clarifies that the informed-consent exception is not absolute: ‘Notwithstanding a client’s informed written consent, courts retain discretion to take action, up to and including disqualification of a lawyer who seeks to both testify and serve as an advocate, to protect the trier of fact from being misled or the opposing party from being prejudiced.’ [Citations.] ‘In other words, a court retains discretion to disqualify a likely advocate-witness as counsel, notwithstanding client consent, where there is “a convincing demonstration of detriment to the opponent or injury to the integrity of the judicial process.” ’ [Citations.]” (<i>Lopez v. Lopez</i> (2022) 81 Cal.App.5th 412, 423 (<i>Lopez</i>).) “Rule 3.7 is limited on its face to trial.” (<i>Lopez, supra</i>, 81 Cal.App.5th at p. 423.) “Nevertheless, to effectuate the rule’s purpose of avoiding fact finder confusion, we interpret the rule’s use of the term ‘trial’ to encompass a pretrial evidentiary hearing at which counsel is likely to testify.” (<i>Doe v. Yim</i> (2020) 55 Cal.App.5th 573, 583 (<i>Doe</i>).) Further, “ ‘most courts recognize that an attorney who intends to testify at trial may not participate in “any pretrial activities which carry the risk of revealing the attorney’s dual role to the jury.” [Citation.] In particular, a testifying attorney should not take or defend depositions.’ [Citations]” (<i>Ibid.</i>)